

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF BOBYRIN AND OTHERS v. RUSSIA

(Applications nos. 63819/17 and 22 others –
see appended list)

JUDGMENT

STRASBOURG

13 October 2022

This judgment is final but it may be subject to editorial revision.



In the case of Bobyrin and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*
Andreas Zünd*,*
Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar*,

Having deliberated in private on 15 September 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

6. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:
>
> ...

(c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ...”

7. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an “exceptional case” and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018). The authorities’ failure to comply with those requirements, in the Court’s view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019).

8. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility (including by applying the three-month extension introduced by decision of the President of the Court in 2020 as a consequence of the lockdown imposed in France on account of the COVID-19 pandemic (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022)) and merits of these complaints. The Court discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by the Russian law. It concludes that that the national authorities failed to comply with applicable rules of domestic procedure and considers that the applicants’ arrest and detention were not “in accordance with a procedure prescribed by law”.

9. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, 20 September

2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences, *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 179-91, 10 April 2018, concerning delayed review of the applicants' sentence of administrative detention).

11. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

13. Regard being had to the documents in its possession and to its case-law (see, in particular, *Saidov v. Russia* [Committee], no. 31872/19, § 23, 26 July 2022), the Court considers it reasonable to award the sums indicated in the appended table.

14. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses;

3. *Holds* that these complaints disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention and its Protocols as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 13 October 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	63819/17 18/08/2017	**Viktor Sergeyevich BOBYRIN** 1991	Aleksandr Vasilyevich Popkov Sochi	26/03/2017	26/03/2017	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative offence proceedings - (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrest of the applicant at a manifestation on 26/03/2017. Final decision on the matter was taken by the Krasnodar Regional Court on 08/04/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court at first level of jurisdiction was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 179-91, 10 April 2018; Martynyuk v. Russia, no. 13764/15, §§ 38-42, 8 October 2019).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
2.	63821/17 18/08/2017	**Dmitriy Olegovich SAVOSKIN** 1998	Aleksandr Vasilyevich Popkov Sochi	26/03/2017	26/03/2017	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017) , Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrest of the applicant at a manifestation on 26/03/2017. Final decision on the matter was taken by the Krasnodar Regional Court on 06/04/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court at first level of jurisdiction was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 179-91, 10 April 2018; Martynyuk v. Russia, no. 13764/15, §§ 38-42., 8 October 2019).	3,900
3.	63825/17 18/08/2017	**Andrey Aleksandrovich SERIKOV** 1984	Aleksandr Vasilyevich Popkov Sochi	26/03/2017	26/03/2017	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17,	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrest of the	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						§ 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017), Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018).	applicant at a manifestation on 26/03/2017. Final decision on the matter was taken by the Krasnodar Regional Court on 06/04/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court at first level of jurisdiction was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 179-91, 10 April 2018; Martynyuk v. Russia, no. 13764/15, §§ 38-42., 8 October 2019;	
4.	71090/17 18/09/2017	**Aleksey Nikolayevich NIKITIN** 1969	Aleksandr Vasilyevich Popkov Sochi	26/03/2017	26/03/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrest of the applicant at a manifestation on 26/03/2017. Final decision on the matter was taken by the Krasnodar Regional Court on 07/04/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO), (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017); Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018).	sentence of administrative detention imposed on the applicant by the court at first level of jurisdiction was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 179-91, 10 April 2018; Martynyuk v. Russia, no. 13764/15, §§ 38-42., 8 October 2019..	
5.	71094/17 18/09/2017	**Vitaliy Mikhaylovich MOLODANOV** 1973	Aleksandr Vasilyevich Popkov Sochi	26/03/2017	26/03/2017	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017), Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrest of the applicant at a manifestation on 26/03/2017. Final decision on the matter was taken by the Krasnodar Regional Court on 06/04/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court at first level of jurisdiction was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others,	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						7077/06 and 12 others, §§ 76-79, 26 June 2018).	§§ 179-91, 10 April 2018; Martynyuk v. Russia, no. 13764/15, §§ 38-42., 8 October 2019.	
6.	78326/17 02/11/2017	**Vladimir Ivanovich GIRICH** 1950	Aleksandr Vasilyevich Popkov Sochi	26/03/2017	26/03/2017	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017), Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrest of the applicant at a manifestation on 26/03/2017. Final decision on the matter was taken by the Krasnodar Regional Court on 31/05/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court at first level of jurisdiction was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 179-91, 10 April 2018; Martynyuk v. Russia, no. 13764/15, §§ 38-42., 8 October 2019)	3,900
7.	3848/19 29/12/2018	**Sergey Viktorovich SOKOL** 1998	Popkov Aleksandr Vasilyevich Sochi	05/05/2018	05/05/2018	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Arrest of the applicant at a manifestation on 05/05/2018. Final decision on the matter	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017), Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018).	was taken by the Krasnodar Regional Court on 04/07/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court at first level of jurisdiction was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 179-91, 10 April 2018; Martynyuk v. Russia, no. 13764/15, §§ 38-42., 8 October 2019.	
8.	60157/19 13/11/2019	**Viktor Sergeyevich GULBIN** 1981	Aleksandr Yevgenyevich Pomazuyev Vilnius	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019. Final decision on the matter was taken by the Krasnodar Regional Court on 04/07/2017;	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).		
9.	7236/20 23/01/2020	**Aleksandr Georgiyevich YEFIMOV** 1986	Memorial Human Rights Centre Moscow	12/06/2019 1.37 p.m.	12/06/2019 10.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 15,000/ Moscow City Court on 08/08/2019 (appeal decision).	3,900
10.	7717/20 29/01/2020	**Aleksey Mikhaylovich MARTYNENKO** 1980	Memorial Human Rights Centre Moscow	12/06/2019 1.40 p.m.	12/06/2019 7.00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under Article 20.2 § 6.1 of CAO for	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 20/08/2019 (appeal decision).	
11.	7764/20 29/01/2020	**Aleksandr Yevgenyevich SHVETS** 1981	Memorial Human Rights Centre Moscow	12/06/2019 1.35 p.m.	12/06/2019 9.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6.1 of CAO for participation on 12/09/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 15,000/ Moscow City Court on 26/08/2019 (appeal decision).	3,900
12.	7814/20 31/01/2020	**Florid Rafaelevich MAKHMUTOV** 1984	Memorial Human Rights Centre Moscow	12/06/2019 1.20 p.m.	12/06/2019 9.00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016);	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						(see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 08/08/2019 (appeal decision).	
13.	8040/20 23/01/2020	**Amin Zeynovich MALIKOV** 1984	Memorial Human Rights Centre Moscow	12/06/2019 1.30 p.m.	12/06/2019 8.40 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 26/07/2019 (appeal decision).	3,900
14.	8447/20 31/01/2020	**Varvara Igorevna GORELKINA** 1997	Memorial Human Rights Centre Moscow	12/06/2019 2.40 p.m.	12/06/2019 9.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (see Karelin v. Russia, no. 926/08, 20 September 2016);	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 28/08/2019 (appeal decision).	
15.	10607/20 06/02/2020	**Kirill Konstantinovich YARTSEV** 1990	Memorial Human Rights Centre Moscow	12/06/2019 2.05 p.m.	12/06/2019 8.45 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 15,000/ Moscow City Court on 06/08/2019 (appeal decision).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).		
16.	11081/20 07/02/2020	**Andrey Arturovich ARUTYUNYAN** 1993	Memorial Human Rights Centre Moscow	12/06/2019 3.00 p.m.	12/06/2019 8.00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 26/09/2019 (appeal decision).	3,900
17.	11181/20 22/02/2020	**Ilya Vyacheslavovich SHUMANOV** 1981	Memorial Human Rights Centre Moscow	12/06/2019 1.30 p.m.	12/06/2019 8.00 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee],	Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings (akin to Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 para. 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 26/08/2019 (appeal decision).	
18.	12056/20 20/02/2020	**Aleksandr Sergeyevich STOGNIYENKO** 2000	Memorial Human Rights Centre Moscow	12/06/2019 2.50 p.m.	12/06/2019 9.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 22/08/2019 (appeal decision).	3,900
19.	14903/20 11/03/2020	**Yevgeniy Mikhaylovich NIZHNIKOV** 1999	Aleksandr Yevgenyevich Pomazuyev Vilnius	03/08/2019	04/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17,	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						§ 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017); Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	arrest at a manifestation on 03/08/2019. Final decision was taken by the Moscow City Court on 02/10/2019.	
20.	19311/20 23/03/2020	**Solomon Maksimovich PANTELEYEV** 2000	Aleksandr Yevgenyevich Pomazuyev Vilnius	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019. Final decision was taken by the Moscow City Court on 18/10/2019.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						(Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).		
21.	20917/20 06/05/2020	**Grigoriy Dmitriyevich MALYSHEV** 1999	Nikolay Sergeyevich Zboroshenko Moscow	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017). Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019. Final decision was taken by the Moscow City Court on 26/11/2019.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).		
22.	26612/20 05/06/2020	**Igor Igorevich PANOV** 1994	Aleksandr Yevgenyevich Pomazuyev Vilnius	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019. Final decision was taken by the Moscow City Court on 08/10/2019.	3,900
23.	26811/20 14/04/2020	**Mikhail Viktorovich OLKOV** 1985	Aleksandr Yevgenyevich Pomazuyev Vilnius	03/08/2019	03/08/2019	Applicant taken to the police station as an administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO,	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (Karelin v. Russia, no. 926/08, 20 September 2016);	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019); Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017); Detention as an administrative suspect: beyond the 48-hour statutory period (Art. 27.5(3)-(4) and Art. 29.6(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant's arrest at a manifestation on 03/08/2019. Final decision was taken by the Moscow City Court on 06/12/2019.	

[1] Plus any tax that may be chargeable to the applicants.